

defend themselves against suits by disgruntled litigants.¹⁸ Similar limitations serve to prevent harassment of judges through use of the writ of mandamus. Because mandamus has "the unfortunate consequence of making the judge a litigant, obliged to obtain personal counsel or to leave his defense to one of the litigants before him," the Court has stressed that it should be "reserved for really extraordinary causes." *Ex parte Fahey*, 332 U. S. 258, 260 (1947). Occasionally, however, there are "really extraordinary causes" and, in such cases, there has been no suggestion that judicial immunity prevents the supervising court from issuing the writ.¹⁹

¹⁸ Article III also imposes limitations on the availability of injunctive relief against a judge. See *In re Justices of Supreme Court of Puerto Rico*, 695 F. 2d 17, 21 (CA1 1982) (no case or controversy between a judge who adjudicates claims under a statute and a litigant who attacks the constitutionality of the statute). See also *Los Angeles v. Lyons*, 461 U. S. 95 (1983) (claims for injunctive relief against unconstitutional state practice too speculative).

¹⁹ In *Hall v. West*, 335 F. 2d 481 (CA5 1964), a petition for writ of mandamus was filed by Negro plaintiffs in a civil rights case that had been pending before the District Court more than 11 years. Although two other District Courts, affirmed by this Court, had declared unconstitutional the Louisiana segregated school system and the state statute passed to allow the school board to close public schools to avoid desegregation, the board had made clear that it intended to take no action to change the segregated system without a further order from the District Court. The court, however, refused to act. The Court of Appeals therefore issued a writ of mandamus, compelling the District Court to order the defendants to submit a plan for the commencement of desegregation of the schools under their control. See also *In re Attorney General of the United States*, 596 F. 2d 58 (CA2) (writ of mandamus granted to vacate District Court's contempt order against the Attorney General), cert. denied, 444 U. S. 903 (1979).

Whether or not the judge is required to appear personally in the proceeding, see the dissent, *post*, at 552, he remains a party to the suit and risks contempt for violating the writ. See *In re Smith*, 2 Cal. App. 158, 83 P. 167 (1905); *State v. Williams*, 7 Rob. 252 (La. 1844); *People ex rel. Bristol v. Pearson*, 4 Ill. 270 (1841). And although courts properly are reluctant to impose costs against a judge for actions taken in good-faith performance of his judicial responsibilities, a court, in its discretion, may award costs against a respondent judge. See *State ex rel. Clement v. Grzezinski*, 158 Ohio St. 22, 106 N. E. 2d 779 (1952).